PER CURIAM.

The writ of certiorari is dismissed as improvidently granted.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE JACKSON joins, concurring.

I concur in the Court's decision to dismiss the writ of certiorari as improvidently granted. I write separately for two reasons. First, based on the evidentiary record and how this litigation proceeded below, I explain why the Court should not and cannot use this case to address how courts must analyze multiple IQ scores under *Atkins* v. *Virginia*, 536 U. S. 304 (2002). Second, I point out how the principal dissent's discussion of this Court's precedents and the scientific consensus about how courts should evaluate multiple IQ scores is incomplete and potentially misleading.

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I

A

In 1998, Joseph Smith was convicted of first-degree murder. At his sentencing hearing, Smith introduced evidence of intellectual disability, including an IQ score of 72 and testimony from the test's administrator explaining that the test's standard error of measurement indicated Smith's IQ could

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Solicitor General, and *Christopher Henry*; and for the America First Legal Foundation by *Christopher E. Mills* and *Daniel Z. Epstein.*

Briefs of *amici curiae* urging affirmance were filed for the American Association on Intellectual and Developmental Disabilities (AAIDD) et al. by *Ann M. Delpha* and *James W. Ellis*; for the American Psychological Association et al. by *Melissa Arbus Sherry, Peter A. Prindiville, Deanne M. Ottaviano,* and *Aaron M. Panner*; and for Katie Kronick by *Andrew T. Tutt.*

Kent S. Scheidegger filed a brief for the Criminal Justice Legal Foundation as *amicus curiae.*

be as low as 69 or as high as 75.[1] Smith also introduced his school records, which showed that he was previously administered two IQ tests resulting in scores of 75 and 74 and that he was classified as "'educable mentally retarded'" in 7th grade. *Smith* v. *State*, 71 So. 3d 12, 19–20 (Ala. Crim. App. 2008). At the time of Smith's sentencing, this Court had held that it did not violate the Eighth Amendment to execute an intellectually disabled person so long as the sentencers considered mitigating evidence of the defendant's intellectual disability among other aggravating or mitigating evidence. See *Penry* v. *Lynaugh*, 492 U. S. 302, 328, 330–335 (1989). The jury in Smith's case returned an advisory verdict recommending the death penalty, which the trial judge imposed. The Alabama Supreme Court affirmed Smith's sentence.

A few years later, this Court held in *Atkins* v. *Virginia*, 536 U. S. 304 (2002), that it violates the Eighth Amendment to execute an individual who is intellectually disabled. In so holding, the Court largely left it to the States to "'develo[p] appropriate ways to enforce'" this limitation. *Id.*, at 317. The Alabama Supreme Court responded by adopting a definition of intellectual disability that requires the defendant to prove three prongs, all by a preponderance of the evidence: (1) "significantly subaverage intellectual functioning (an IQ of 70 or below)"; (2) "significant or substantial deficits in adaptive behavior"; and (3) manifestation of "these problems . . . during the developmental period (i. e., before the defendant reached age 18)." *Ex parte Perkins*, 851 So. 2d 453, 456 (2002).

After *Atkins* and *Perkins* were decided, Smith petitioned for postconviction relief in Alabama state court, alleging that he is intellectually disabled under Alabama's definition and that his execution would violate the Eighth Amendment.

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[1] The standard error of measurement reflects the potential error inherent in an IQ test and is used to calculate a confidence interval, a "range within which one may say an individual's true IQ score lies." *Hall* v. *Florida*, 572 U. S. 701, 713 (2014).

The trial court denied Smith's request for an evidentiary hearing and his petition, the Alabama Court of Criminal Appeals affirmed that decision, and the Alabama Supreme Court denied review.

B

Smith next petitioned for federal habeas relief in the District Court for the Southern District of Alabama. The District Court initially denied his petition, but the Eleventh Circuit reversed. The Court of Appeals held that the District Court wrongly deferred to the Alabama Court of Criminal Appeals' decision under 28 U. S. C. § 2254(d) and remanded for the District Court to conduct a *de novo* inquiry into whether Smith is intellectually disabled under Alabama's definition of intellectual disability. *Smith* v. *Campbell*, 620 Fed. Appx. 734 (CA11 2015). Alabama did not file a petition for a writ of certiorari to this Court.

On remand in the District Court, Alabama and Smith agreed to an evidentiary hearing. See *Smith* v. *Thomas*, No. 1:05–cv–00474 (SD Ala., July 1, 2016), ECF Doc. 75. Both parties hired experts to administer new IQ tests: Dr. King for the State and Dr. Fabian for Smith. On the test administered by King, Smith scored a 74 with a 95% confidence interval of 70 to 79. On the test administered by Dr. Fabian, Smith scored a 78 with a 95% confidence interval of 72 to 83. At this point, Smith had obtained five IQ scores ranging from 72 to 78. The District Court then admitted expert reports from King, Fabian, and an additional expert proffered by Smith, and heard testimony from all three as to whether Smith is intellectually disabled.

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The experts each opined on Smith's intellectual functioning. The State's expert, King, stated in his report that a score of 74 "would technically place [Smith in] the borderline range of intellectual functioning," but that the score "is not reflective . . . of his true intellectual functioning," which King described as "in the low average range of ability." 2 App. 596. King explained that "a single . . . IQ score" is com-

prised of multiple subscores, which reflect different aspects of one's intellectual functioning, and a final score "needs to be additionally parsed in order to look at whether there is subtest scatter or whether there is consistency." *Id.*, at 596–597. In the IQ test that King administered, the scatter in Smith's subscores was, in King's view, more "indicative of . . . a learning disabilit[y]" than of intellectual disability. *Id.*, at 598. King testified that, in his view, Smith did not have significantly subaverage intellectual functioning based "on all the data that [he] collected, all the records that [he] reviewed" and "all of the IQ tests that have been compiled over a lengthy period of time." 1 *id.*, at 271. He also explained that his conclusion was based in part on Smith's "presentation to" and "ability to interact" with King. *Id.*, at 271–272.

Smith's experts similarly reviewed all of Smith's scores and records, but came to different conclusions. Fabian testified that several of Smith's prior scores were "in the range for intellectual disability," *id.*, at 244, and that, overall, Smith "meets the intellectual deficit prong of the intellectual disability definition," *id.*, at 179–180. Fabian explained that even though Smith's scores were above 70, one "need[s] to consider those IQ scores with the other areas of functioning," such as his adaptive functioning, including evidence of his "academic achievement" and "executive functioning." *Id.*, at 180. Together, those latter considerations showed that, "cognitively[, Smith is] impaired in a number of areas" and that, according to Fabian, Smith's IQ scores "in total can be considered consistent with significant limitations in intellectual disability." *Ibid.* Smith's second expert, too, testified that Smith's scores were "in the range of what would be considered mild intellectual disability," "particularly" when "consider[ing] the standard error of measurement." *Id.*, at 111; see also 3 *id.*, at 875.

In assessing Smith's intellectual functioning, the District Court also considered a report by the expert who had admin-

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istered the 1998 test in which Smith scored a 72 with a standard error range of 69 to 75. That expert concluded that Smith's score "places him at the 3rd percentile in comparison to the general population," and that Smith "'operates between the Low Average and Mentally Retarded range'" but "'at a level closer to those individuals who would be considered mentally retarded.'" *Smith* v. *Dunn*, Civ. Action No. 05–00474 (SD Ala., Aug. 17, 2021), App. to Pet. for Cert. 73a (Pet. App.).

Based on all the evidence, the District Court found that whether Smith "qualifies as having significantly subaverage intellectual function[ing]" was "not clear" and that this was a "close case." *Id.*, at 74a. The court acknowledged that King "testified that if there are multiple sources of IQ over a long period of time[,] it contributes to the construct of validity indicating what a true IQ score is for an individual" and that "multiple IQ scores" in Smith's case "place him in the borderline range, functioning just above intellectual disability." *Id.*, at 70a. However, the District Court did "not find [this evidence] strong enough to conclude that Smith is not intellectually disabled without considering evidence of his adaptive deficits" because Smith "did not consistently score so high that the [District] Court [wa]s confident that the lowest score can be thrown out as an outlier or that the standard error for the tests can be disregarded." *Ibid.* The District Court observed that "at best Smith['s] intelligence falls at the low end of the Borderline range of intelligence and at worst at the high end of the required significantly subaverage intellectual functioning." *Id.*, at 74a. It therefore decided to consider "additional evidence," including evidence about "whether Smith suffers from significant or substantial deficits in adaptive behavior," to assess whether Smith is intellectually disabled. *Ibid.*

From there, the District Court analyzed evidence of Smith's adaptive deficits, which included Smith's school records, testimony from Smith's family members about Smith's

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abilities, testimony from Smith himself, and the expert opinions of King and Fabian. *Id.*, at 75a–92a.[2] The District Court also considered the results of other psychological tests, which related to both the intellectual-functioning and adaptive-functioning prongs. *Id.*, at 90a–92a.

After weighing all the evidence, the District Court found that "Smith has shown by a preponderance of the evidence that he has significantly subaverage intellectual functioning and significant deficits in adaptive behavior." *Id.*, at 92a. The court also found that Smith's intellectual- and adaptive-functioning issues "clearly arose before he was 18 years of age." *Id.*, at 96a. Based on these findings, the court concluded that Smith "is intellectually disabled and cannot constitutionally be executed." *Id.*, at 96a–97a.

C

The Eleventh Circuit initially affirmed, but this Court vacated that decision because its basis was "unclear." *Hamm* v. *Smith*, 604 U. S. 1, 2 (2024) (*per curiam*). The Court explained that "the Eleventh Circuit's opinion might be read to afford conclusive weight to the fact that the lower end of the standard-error range for Smith's lowest IQ score is 69," which "would suggest a *per se* rule that the lower end of the standard-error range for an offender's lowest score is dispositive" of the intellectual-functioning prong. *Ibid.* Alternatively, the opinion could be read to "suggest a more holistic approach to multiple IQ scores that considers the relevant evidence, including as appropriate any relevant expert testimony." *Ibid.* This Court noted that it "has not specified how courts should evaluate multiple IQ scores," and asked the Eleventh Circuit to clarify its holding. *Ibid.*

On remand, the Eleventh Circuit answered that it had used a "'holistic approach.'" *Smith* v. *Commissioner, Ala.*

[2] The District Court "question[ed] the veracity" of some of King's testimony because his criticism of Fabian's methods was contradicted by his own prior testimony in other cases. See App. to Pet. for Cert. 89a.

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Dept. of Corrections, No. 21–14519 (Nov. 14, 2024) (*per curiam*), Pet. App. 2a. It also "unambiguously reject[ed] any suggestion that a court may ever conclude that a capital defendant suffers from significantly subaverage intellectual functioning based solely on the fact that the lower end of the standard-error range for his lowest of multiple IQ scores is 69." *Ibid.* It then affirmed the District Court's decision, explaining that the District Court had properly considered "Smith's IQ test results, taken together and in context of expert testimony," and that its factual findings were not clearly erroneous. *Id.*, at 5a.

D

Alabama filed a petition for a writ of certiorari proposing two questions: First, "[w]hether, under a proper application of *Atkins*, a State can require a claimant to prove an IQ of 70 or less by a preponderance of the evidence"; and second, "[w]hether courts evaluating multiple IQ scores must find that every valid score of 'about' 75 or less supports an *Atkins* claim." Pet. for Cert. i. This Court declined to grant either question, and instead granted a question raised by the United States on the last two-and-a-half pages of its *amicus* brief: "Whether and how courts may consider the cumulative effect of multiple IQ scores in assessing an *Atkins* claim." Brief for United States as *Amicus Curiae* on Pet. for Cert. I; see *id.*, at 20–22. The United States did not identify any split among the lower courts on this issue. See *id.*, at 20–22.

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II

The Court is not equipped in this case to provide any meaningful guidance on how courts should assess multiple IQ scores. All the parties here agree that the Eighth Amendment does not prescribe a single formula for weighing multiple IQ scores. All the parties also agree that *Atkins* gave States the primary role in "developing appropriate ways to enforce" *Atkins*. 536 U. S., at 317. Although the

parties offer to this Court a variety of approaches to assessing multiple IQ scores that States could adopt, the litigation below did not focus on whether a precise methodology exists that courts must use. Without the benefit of an evidentiary record or decisions below trained on the specific theories now advanced by the parties, this Court rightly concludes that it should not provide more detailed guidance beyond what this Court's cases have previously said.

A

To start, and most significantly, the parties agree that there is no single approach to weighing multiple IQ scores. Alabama here disclaims any "single, mechanical rule . . . for aggregating multiple IQ scores." Reply Brief 12 (internal quotation marks omitted; ellipsis in original). It instead offers a rule that a factfinding court must consider the "cumulative effect" of multiple IQ scores, by which it means that the scores must be "combine[d] to prove an IQ of 70 or below." *Id.*, at 1, 10. Alabama suggests that courts could do so using one of several methods, such as taking the median, examining the "overlap among each score's error range," calculating a composite score, taking the average, or looking only at the highest score. *Id.*, at 10–12, 19. Still, it acknowledges that there is no "consensus over whether and how to evaluate the cumulative effect of multiple IQ scores." Brief for Petitioner 28.

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The United States agrees that "the Eighth Amendment" does not "prescrib[e] a specific approach to analyzing multiple IQ tests." Brief for United States as *Amicus Curiae* 19. It notes that it is "possible" to combine multiple scores into a composite score or into a "single range," but contends only that "a court may take stock of the full range of . . . IQ scores," not how a court must do so. *Id.*, at 18–19. It also emphasizes that if a court considered multiple scores or a combination of those scores, such as a composite score, the

inquiry would "[o]f course . . . fall to the factfinder to assess and weigh this sort of expert analysis." *Id.*, at 19.

Smith, for his part, contends that courts must assess multiple IQ scores "holistically," which includes "considering those scores in light of other evidence—particularly expert testimony—regarding the scores' validity and meaning, and other evidence of the claimant's intellectual functioning." Brief for Respondent 2. Smith does not disagree with Alabama and the United States, however, that as part of that holistic analysis, courts could consider an aggregation of scores, such as a composite score, if one is presented.

Thus, despite discussing different methods by which courts could assess multiple IQ scores, the parties all appear to agree there is no particular method by which courts must consider multiple scores.

B

The Court's review is further complicated by the fact that the issue of how to consider multiple IQ scores was neither meaningfully raised nor passed upon below. In the District Court, Alabama never argued that the court must, as a matter of law, combine all IQ scores using any particular method (or set of methods) to assess whether an *Atkins* claimant has proven significantly subaverage intellectual functioning. See Respondent's Post-Hearing Brief, ECF Doc. 129, pp. 36–46. Nor did Alabama argue that the District Court must base its finding of intellectual functioning solely on Smith's IQ scores, without considering evidence of Smith's academic performance and adaptive functioning as well. See *id.*, at 36 (arguing that Smith's school records show he does not meet the intellectual-functioning prong, rather than asking the District Court to ignore those records). Instead, Alabama urged the District Court to apply Alabama's state-law standard for assessing intellectual disability, which it explained does not "preclude consideration of other evidence of intellectual disability, including testimony regarding

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adaptive deficits[,] when a person has an IQ over 70." *Id.*, at 4.

In fact, none of the experts, not even the State's expert, combined Smith's scores using any method that Alabama now claims is necessary. Not one of the experts calculated a composite score, used the mean or median, examined the "overlap" of the scores' error ranges, or relied solely on the highest score. Nor did any expert testify that using such methods was the most scientifically sound way to evaluate Smith's intellectual functioning. Instead, all three considered all the scores in addition to other evidence and used their own clinical judgment to render conclusions about Smith's intellectual functioning. In other words, each expert assessed the scores holistically.

Nor did Alabama appeal the District Court's determination on this basis. In its brief to the Eleventh Circuit, Alabama argued that the District Court improperly shifted the burden of proof onto the State to prove that Smith was not intellectually disabled and that its factual determinations were clearly erroneous. At no point did Alabama contend that the District Court erred by failing to combine Smith's scores using one of the methods it now claims is required.

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Unsurprisingly, then, neither the District Court nor the Eleventh Circuit specifically addressed whether a court must consider the "cumulative effect" of Smith's IQ scores by combining them using a specific method, or whether one method is better than another, or even how a court should go about deciding which method is preferable. Instead, based on the arguments and evidence raised, the Eleventh Circuit held that the District Court did not err in its "'holistic'" consideration of Smith's scores and that its factual determination that Smith has significant subaverage intellectual functioning was not clearly erroneous "based on the complete record, including any relevant expert testimony." Pet. App. 2a.

What is more, it does not appear that a single state legislature or court or Federal Court of Appeals has adopted Ala-

bama's proposed rule that courts must combine multiple IQ scores using any one method (or a set of methods); nor has any adopted a rule prohibiting courts from assessing multiple scores holistically without combining them, just as the District Court did here. This Court is therefore right to exercise caution and decline to adopt any such rules now.[3]

C

The principal dissent claims that the Court should have taken this opportunity to provide "much-needed guidance" to lower courts. *Post*, at 316 (opinion of ALITO, J.). At the outset, there is no evidence that the lower courts are desperate for guidance; there is no split and neither state courts nor federal courts have expressed substantial confusion over how to assess multiple IQ scores. See, *e. g.*, *Black* v. *Carpenter*, 866 F. 3d 734, 743–749 (CA6 2017) (affirming the District Court's review of 10 scores and expert testimony interpreting those scores); *Jackson* v. *Payne*, 9 F. 4th 646, 653 (CA8 2021) (similar). Nor is there a barrage of *Atkins* cases involving multiple IQ scores; in the 12 years since *Hall* v. *Florida*, 572 U. S. 701, was decided, Smith's counsel identifies only 43 *Atkins* cases across the country in which courts evaluated multiple IQ scores. Brief for Respondent 9, and n. 1.[4]

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[3] Contrary to the principal dissent's assertion, I am not "shifting the burden to Alabama." *Post*, at 335 (opinion of ALITO, J.). All agree that an *Atkins* claimant has the burden to prove that he is intellectually disabled. Rather, I explain only that the way this case was litigated renders it inappropriate for this Court to adopt any specific rule about how multiple IQ scores must be assessed in part because Alabama has not urged one here or below.

[4] Smith notes that in addition to the 43 cases, another 13 cases may have involved multiple IQ scores but "were either resolved on grounds unrelated to intellectual capacity or arose in a procedural posture . . . distinct from the *Atkins* analysis." Brief for Respondent 9, and n. 1; cf. *post*, at 321 (opinion of ALITO, J.) (similarly citing Smith's appendix but claiming that multiple IQ scores arose in 56 cases).

The guidance the principal dissent wishes to provide appears to be, in part, that courts should consult the methods outlined in the American Psychological Association's Handbook of Intellectual and Development Disabilities (APA Handbook). *Post*, at 322. It is hard to imagine, however, that courts need this lesson, given that this Court's cases have repeatedly explained that "[i]n determining who qualifies as intellectually disabled, it is proper to consult the medical community's opinions," *Hall*, 572 U. S., at 710, including "leading diagnostic manuals," *Moore* v. *Texas*, 581 U. S. 1, 13 (2017); see *Atkins*, 536 U. S., at 318 (considering the medical community's framework).

The principal dissent apparently seeks to go further and wants this Court to provide more granular guidance about which specific methods of assessing multiple scores are acceptable. *Post*, at 322–324. As described above, this Court cannot differentiate between methods because these various methods were not raised in the litigation below.

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Proceeding without a more developed record or lower-court opinions is especially perilous. That is because the differences between methods used to assess multiple IQ scores raise complicated questions on which even experts may disagree. As one example, the principal dissent, citing several studies, argues that "when an individual has multiple IQ scores, the 'higher scores are likely to be more indicative' of a person's intelligence than the lower scores." *Post*, at 325. Yet, the American Association on Intellectual and Developmental Disabilities (AAIDD) explains that "when IQ scores are all close to the boundary of intellectual disability, the 'true' score may actually be even lower than the reported scores." Brief for AAIDD et al. as *Amici Curiae* 26 (AAIDD Brief). Due to the statistical concept of regression to the mean, the AAIDD elaborates, when an individual's scores are "grouped far away from the mean score of 100 used on most IQ tests[,] it is a statistical indicator that the individual's 'true' score is likely to be even farther away from the

mean." *Ibid.* (emphasis deleted); see also D. Watson, Intelligence Testing, in The Death Penalty and Intellectual Disability 124 (E. Polloway ed. 2015) ("[I]t is inappropriate to simply accept, in a rote fashion, [a] higher score in the false belief that one can never score higher than their true IQ but can always score poorer in the face of limited effort"). There is no reason for this Court to leapfrog the experts, state courts, and federal lower courts to provide conclusive guidance at this level of detail in the first instance.

Thus, for the reasons given above, the Court is correct today to dismiss this case as improvidently granted.

III

Despite the principal dissent's professed concern that lower courts lack sufficient guidance from this Court to analyze multiple IQ scores in general, it seems that the core of the dissent's dissatisfaction is rather with the District Court's specific conclusion in this case that Smith is intellectually disabled and thus cannot be executed. See *post*, at 324. Even on these case-specific grounds, the dissent is mistaken. I therefore write to explain why the District Court's holistic method of reviewing multiple IQ scores is consistent with this Court's precedents, the medical community's diagnostic framework, and Alabama state law. Furthermore, the District Court's factual finding that Smith has significantly subaverage intellectual functioning, and its ultimate conclusion that Smith is intellectually disabled, is neither properly before the Court nor clearly erroneous.[5]

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[5] The principal dissent spends considerable time attacking the Eleventh Circuit's initial decision in 2024 as adopting a "one-low-score approach." See *post*, at 324–329. This Court, however, vacated that opinion in the *per curiam* and asked the Eleventh Circuit to clarify whether it used a one-low-score approach or a holistic approach. *Hamm* v. *Smith*, 604 U. S. 1 (2024) (*per curiam*). The Eleventh Circuit's opinion on remand, in which it clarified that it had employed a holistic approach, is the decision on which the dissent should be focusing.

A

To start, the principal dissent claims that the lower courts misinterpreted *Hall* and *Moore*. They did not. This Court has not previously addressed the method by which "courts should evaluate multiple IQ scores," *Hamm*, 604 U. S., at 2, but it has confronted several cases involving multiple scores. The District Court's holistic review below was consistent with those precedents.

In *Hall* v. *Florida*, 572 U. S. 701, the *Atkins* claimant had seven valid scores between 71 and 80, and Florida sought to execute him based on Florida precedent requiring an IQ score below 70 before allowing additional evidence of intellectual disability. 572 U. S., at 707.[6] The lower courts had denied relief, but this Court reversed, reasoning that "Florida's rule disregard[ed] established medical practice in two interrelated ways." *Id.*, at 712. First, "[i]t [took] an IQ score as final and conclusive evidence of a defendant's intellectual capacity, when experts in the field would consider other evidence." *Ibid.* Second, it "relie[d] on a purportedly scientific measurement of the defendant's abilities, his IQ score, while refusing to recognize that the score is, on its own terms, imprecise." *Ibid.* The Court acknowledged that "the analysis of multiple IQ scores jointly is a complicated endeavor," but that "[e]ven when a person has taken multiple tests, each separate score must be assessed using the [standard error of measurement]." *Id.*, at 714.

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In reaching this conclusion, the Court observed that because a given IQ "test itself may be flawed, or administered in a consistently flawed manner, multiple examinations may result in repeated similar scores, so that even a consistent score is not conclusive evidence of intellectual functioning." *Ibid.* From this, the Court reasoned that a court may not refuse to consider additional evidence beyond IQ scores, such

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[6] Hall had nine total IQ scores, but two were excluded by the sentencing court for evidentiary reasons. *Hall*, 572 U. S., at 707.

as evidence of "the defendant's failure or inability to adapt to his social and cultural environment, including medical histories, behavioral records, school tests and reports, and testimony regarding past behavior and family circumstances," if "the medical community accepts that [such] evidence can be probative of intellectual disability, including for individuals who have an IQ test score above 70." *Id.*, at 712. Thus, the Court held that Hall must "have the opportunity to present evidence of his intellectual disability, including deficits in adaptive functioning over his lifetime," even though his seven IQ scores were all above 70. *Id.*, at 724.

Moore v. *Texas*, 581 U. S. 1, also involved an *Atkins* claimant with multiple valid scores: a 74 and a 78. See 581 U. S., at 10.[7] Applying *Hall*, the Court reasoned that "Moore's score of 74, adjusted for the standard error of measurement, yields a range of 69 to 79," and "[b]ecause the lower end of Moore's score range falls at or below 70, the [Texas court] had to move on to consider Moore's adaptive functioning" and could not "end the intellectual-disability inquiry, one way or the other, based on [the] IQ score" alone. 581 U. S., at 14–15.

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The principal dissent claims that the District Court contravened *Moore* by "deflat[ing] its estimate of Smith's IQ based on details about his" adaptive deficits. *Post*, at 330. That misunderstands both the Court's decision in *Moore* and the District Court's decision below.

In *Moore*, the Texas courts had discounted the lower end of the standard error range for Moore's score of 74 because he "was likely exerting poor effort and experiencing depression at the time the test was administered." 581 U. S., at 25 (ROBERTS, C. J., joined by THOMAS and ALITO, JJ., dissenting). The Court rejected that reasoning because "the presence of other sources of imprecision in administering the

[7] Moore had seven total IQ scores, but the Texas Court of Criminal Appeals had "[r]eject[ed] as unreliable five of the seven IQ tests" and considered only the scores of 74 and 78. *Moore*, 581 U. S., at 10.

test to a particular individual . . . cannot *narrow* the test-specific standard-error range." *Id.*, at 15 (majority opinion). The Court held that, "in line with *Hall*, . . . courts [must] continue the inquiry and consider other evidence of intellectual disability where an individual's IQ score, adjusted for the test's standard error, falls within the clinically established range for intellectual-functioning deficits." *Id.*, at 15. Because Moore had a score of 74, which "yield[ed] a range of 69 to 79," the Court "requir[ed] the [Texas court] to move on to consider Moore's adaptive functioning in light of his IQ evidence." *Id.*, at 14.

Here, the District Court did not discount the lower or higher end of the standard-error range for Smith's scores because of his adaptive deficits; rather, it accepted the full ranges as reflective of what Smith's IQ was likely to be. See Pet. App. 70a ("Smith did not consistently score so high that the Court is confident that . . . the standard error for the tests can be disregarded"); *id.*, at 68a ("It remains clear that the Court should consider the standard error inherent in IQ tests"). It considered all of Smith's scores and their respective standard errors, some of which fell into the clinically established range for intellectual-functioning deficits, and concluded that "additional evidence must be considered, including testimony on [Smith's] adaptive deficits[,] to determine whether Smith is intellectually disabled." *Id.*, at 74a. That is the same analysis that *Hall* endorsed and that *Moore* undertook. The District Court did not deflate a particular score, but instead concluded, based on error ranges and other evidence of cognitive function, that Smith's intellectual functioning is significantly subaverage.

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Thus, in both *Hall* and *Moore*, this Court confronted *Atkins* claimants with multiple scores above 70 (and none below 70), yet still held that courts should consider the scores in light of "additional evidence of intellectual disability, including testimony regarding adaptive deficits." *Hall*, 572 U. S., at 723. At no point did the Court require, or even suggest,

that courts must analyze the scores by combining them using any specific method that the principal dissent contends is necessary. The District Court's holistic approach was thus squarely in line with *Hall* and *Moore*.

B

The principal dissent also claims that the District Court's holistic approach "contravened psychology" and "statistics." *Post*, at 316. The District Court's analysis, however, was entirely consistent with "the medical community's diagnostic framework." *Hall*, 572 U. S., at 721. When a person has multiple IQ scores, the APA Handbook explains that "clinicians may benefit from evaluating the 95% confidence intervals for each score and collectively interpreting the complete set of scores using clinical judgment." R. Floyd, R. Farmer, W. Schneider, & K. McGrew, Theories and Measurement of Intelligence, in 1 APA Handbook of Intellectual and Developmental Disabilities 415 (L. Glidden ed. 2021). The District Court here evaluated Smith's scores in light of their confidence intervals and took into account the clinical judgment of the experts who each interpreted those scores. See Brief for American Psychological Association et al. as *Amici Curiae* 22 (APA Brief) (stating that the decision below is "fully consistent" with its clinical principles). Further, the consensus within the medical community is that there is not one "single, mandatory empirical method," or one set of mandatory methods, for "considering multiple scores" because clinicians must consider the "validity of each test score and the convergence of that score with other scores and qualitative information." AAIDD Brief 24.[8]

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[8] The principal dissent claims that the Court's failure to provide guidance today will result in *Atkins* proceedings being "little more than battles of experts" and that "[w]hether a defendant lives or dies will hinge on which expert a judge finds more credible." *Post*, at 336. It is unclear how the dissent's approach changes the relative importance of expert testimony, given that one of the methods it deems "reasonable" is allowing "an

Moreover, the District Court's consideration of adaptive deficits is consistent with the consensus within the medical community, which has made clear that the existence of multiple IQ scores above 70 does not necessarily end the inquiry entirely. Both the APA and the AAIDD emphasize that "IQ test scores cannot stand alone" and "must be considered alongside other data that inform a clinician's assessment both of intellectual functioning and the other diagnostic criteria." *Id.*, at 5; American Psychiatric Association, Diagnostic and Statistical Manual of Mental Disorders 42 (5th ed. text rev. 2022) (DSM) ("[U]sing [IQ scores] as the sole criteria for the diagnosis of an intellectual developmental disorder is insufficient"). As *Hall* emphasized, "[i]t is not sound to view a single factor," such as IQ scores, "as dispositive of a conjunctive and interrelated assessment," and "'[a] person with an IQ score above 70 may have such severe adaptive behavior problems . . . that the person's actual functioning is comparable to that of individuals with a lower IQ score.'" 572 U. S., at 723 (quoting DSM 37 (5th ed. 2013)). Therefore, according to medical consensus, when IQ scores are "close to the boundary of intellectual disability," a "clinician must conduct a detailed review of qualitative reports of the individual's skills and behavior 'focusing heavily on the functional assessment of what the person actually does' and on how the person interacts with the environment . . . to create the most accurate picture of the person's day-to-day intellectual functioning." AAIDD Brief 28 (citing R. Schalock & R. Luckasson, Clinical Judgment 29 (2d ed. 2014)); see also AAIDD Brief 28–29 (collecting additional citations). The District Court was thus following the framework of the medical community, endorsed by this Court's precedents, when it found that although Smith's IQ scores made this a "close case," Smith had proven by a preponderance of the

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expert witness to . . . make a judgment call about the 'central tendency' of a defendant's various scores." See *post*, at 323–324.

evidence that he had significantly subaverage intellectual functioning. Pet. App. 91a, 96a.[9]

C

The principal dissent further claims that whether the District Court's analysis comported with Alabama law does not bear upon whether Smith's death sentence violated the Constitution. *Post*, at 333–334. Whether Smith's execution would violate the Eighth Amendment under *Atkins*, however, is dependent on Alabama's definition of intellectual disability because *Atkins* " 'le[ft] to the State[s] the task of developing appropriate ways to enforce [this] constitutional restriction.' " 536 U. S., at 317 (second alteration in original); see also *Brumfield* v. *Cain*, 576 U. S. 305, 308, 314 (2015) (applying state-law definition to determine whether claimant was intellectually disabled for *Atkins* purposes). The parties here have rightly proceeded on this understanding. Brief for Petitioner 23; Brief for Respondent 39; Brief for United States as *Amicus Curiae* 25; see also Petitioner's Post-Hearing Brief, ECF Doc. 129, p. 2 ("[F]ederal courts must look to and apply Alabama's definition of intellectual disability").

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Moreover, the District Court's holistic analysis comports with Alabama law, which has no statute or Alabama Supreme Court decision prescribing how courts must consider multiple IQ scores. See *Thomas* v. *Allen*, 607 F. 3d 749, 757 (CA11 2010) ("There is no Alabama case law stating that a

[9] Despite the principal dissent's selective quotation of the APA's and AAIDD's briefs, *post*, at 332–333, n. 5, neither organization contends that a court's analysis of intellectual disability must perfectly mirror a clinician's. *Ibid.* Both organizations agree with this Court's statement in *Hall* that "[t]he legal determination of intellectual disability is distinct from a medical diagnosis, but it is informed by the medical community's diagnostic framework." 572 U. S., at 721; see APA Brief 5–6 (explaining that "scientific and professional consensus should inform the resolution of *Atkins* claims, but it is not unique to or tailored for the death penalty context"); AAIDD Brief 8–9 (similar).

single IQ raw score, or even multiple IQ raw scores, above 70 automatically defeats an *Atkins* claim when the totality of the evidence (scores) indicates that a capital offender suffers subaverage intellectual functioning"). Alabama appellate courts instead recognize that "a court should look at all relevant evidence in assessing an intellectual-disability claim and that no one piece of evidence, such as an IQ test score, is conclusive as to intellectual disability." *Reeves* v. *State*, 226 So. 3d 711, 729 (Ala. Crim. App. 2016). "Conflicting expert testimony" with respect to an *Atkins* claimant's intellectual functioning "'is always a question for the finder of fact to determine.'" 226 So. 3d, at 741. The District Court's analysis here fully comported with these principles.

D

At bottom, the principal dissent's central complaint with the lower courts' decisions is not truly with the method by which the District Court analyzed the scores. Rather, the dissent looks at Smith's five scores at face value and cannot fathom that Smith has significantly subaverage intellectual functioning. The Court rightly decides not to "upset the considered judgment[s] of the forensic psychologist[s] that the factfinding court deemed the most credible based on [the dissent's] own interpretation of a few sentences excised from medical texts." *Moore*, 581 U. S., at 33 (ROBERTS, C. J., joined by THOMAS and ALITO, JJ., dissenting).

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The District Court's factual determination also cannot be reversed unless it is clearly erroneous. "If the district court's account of the evidence is plausible in light of the record viewed in its entirety," an appellate court "may not reverse it even though convinced that had it been sitting as the trier of fact, it would have weighed the evidence differently." *Anderson* v. *Bessemer City*, 470 U. S. 564, 573–574 (1985). When factual findings "are based on determinations regarding the credibility of witnesses," such as the experts here, clear-error review "demands even greater deference to

the trial court's findings." *Id.*, at 575. Indeed, three of the dissenting Justices have previously agreed that "'[b]ecause there often is no single, accurate psychiatric conclusion,'" it is "importan[t]" to allow the "'primary factfinder[]' to 'resolve differences in opinion . . . on the basis of the evidence offered by each party.'" *Moore*, 581 U. S., at 32 (ROBERTS, C. J., joined by THOMAS and ALITO, JJ., dissenting) (third alteration and ellipsis in original).

Here, neither Alabama nor the United States seriously contends that the District Court's finding was clearly erroneous. For good reason: It was not. The District Court held an evidentiary hearing and carefully weighed the evidence, including the raw IQ scores, each score's standard error range, expert testimony about interpreting those scores, and much more. The court ultimately found that Smith has significantly subaverage intellectual functioning and is intellectually disabled. On my review of the record, this determination was correct, or, at the very least, plausible. See APA Brief 22 ("The IQ test scores in this case fall comfortably within the range within which a clinician could reasonably conclude . . . that Smith satisfied" the intellectual-functioning prong of Alabama's definition). In the principal dissent's view, that determination was incorrect. Either way, this Court is not as equipped as the District Court to appreciate all the evidence.

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In any event, this Court did not grant certiorari to decide whether the Eleventh Circuit properly applied a preponderance of the evidence standard. Nor did the Court grant certiorari to decide whether the District Court's factual determination was clearly erroneous. Given that, the Court today rightly declines to reweigh the evidence underlying the District Court's determination.

Ultimately, as this Court has recognized, "[i]ntellectual disability is a condition, not a number" and the "'the diagnosis of [intellectual disability] is intended to reflect a clinical judgment rather than an actuarial determination.'" *Hall*,

572 U. S., at 723 (second alteration in original). In close cases such as this one, the inquiry may well involve a substantial amount of evidence, but that inquiry is nevertheless critical to avoid the "unacceptable risk that persons with intellectual disability will be executed" contrary to the Eighth Amendment. *Id.*, at 704.

* * *

In cases presenting multiple IQ scores, courts should continue to consider multiple IQ scores in light of this Court's precedents and "'the views of medical experts.'" *Moore*, 581 U. S., at 5. If a conflict among the States or lower courts emerges and a case properly presents the issue, it may be appropriate for this Court to weigh in with more specific guidance about the permissible method or methods by which courts must analyze such scores. The Court rightly decides that it is inappropriate to do so in this case. I therefore concur in the decision to dismiss the writ of certiorari as improvidently granted.

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JUSTICE THOMAS, dissenting.

In 1997, Joseph Clifton Smith murdered Durk Van Dam. The trial court, accepting the jury's recommendation, sentenced Smith to death. Smith lost his appeal in 2001. But a year later, in *Atkins* v. *Virginia*, 536 U. S. 304 (2002), this Court held for the first time that convicted murderers like Smith cannot be executed if they are deemed insufficiently intelligent, which the Court suggested would require that they had an IQ of 70 or below. *Id.*, at 308–309, and n. 3, 316–321. Such persons could not be executed, the Court said, even if they "know the difference between right and wrong," even if they "are competent to stand trial," and even if they are intelligent enough to deserve other "criminal sanctions." *Id.*, at 318. The Court did not pretend that the Constitution had ever been understood to impose such a rule. *Id.*, at 340–341 (Scalia, J., dissenting). Just 13 years earlier,